

HOUSE No. 3649

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act limiting autonomous driving capabilities to zero emission and electric vehicles.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Day</i>	<i>31st Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 3649

By Representative Day of Stoneham, a petition (accompanied by bill, House, No. 3649) of Michael S. Day relative to limiting autonomous driving capabilities to zero emission and electric vehicles. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3298 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act limiting autonomous driving capabilities to zero emission and electric vehicles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 90 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the definition of “Automobile transporter”
3 the following 2 definitions:-

4 “Autonomous technology,” technology installed on a motor vehicle that has the
5 capability to control the motor vehicle on which the technology is installed, without the active
6 control or monitoring by a human operator; provided, however, that “autonomous technology”
7 shall not include active safety or driver assistance technology, including, electronic blind spot
8 assistance, crash avoidance, emergency braking, parking assistance, adaptive cruise control, lane
9 keep assistance, lane departure warning, or traffic jam and queuing assistant, unless any of the

technology, alone or in combination with other technology, enables the motor vehicle on which the technology is installed to drive without the active control or monitoring by a human operator.

“Autonomous vehicle,” any motor vehicle equipped with autonomous technology.

SECTION 2. Said section 1 of said chapter 90, as so appearing, is hereby further amended by inserting after the definition of “Way” the following definition:-

“Zero emission vehicle”, a battery electric vehicle, a plug-in hybrid electric vehicle or a fuel cell vehicle.

SECTION 3. Said chapter 90 is hereby further amended by inserting after section 19L the following section:-

Section 19M. An autonomous vehicle operated on the ways of the commonwealth shall be a zero emission vehicle.